

26STCV11922 26STCV11922

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 26STCV11922 Hearing Date: August 17, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 17, 2026

Case Name: Venegas v. Los Angeles

Unified School District

Case

No.: 26STCV11922

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant Los Angeles

Unified School District

Responding Party: Plaintiff Valeria Venegas, a minor, by
and through her guardian ad litem Graciela Herrera

Tentative

Ruling: The hearing on Defendant

Los Angeles Unified School District's demurrer and motion to strike is
continued to September 3, 2026.

Plaintiff Valeria

Venegas, a minor, by and through her guardian ad litem Graciela Herrera ("Plaintiff"),

filed this action against Defendant Los Angeles Unified School District ("Defendant"), City of Los Angeles, and Does 1 through 50. The Complaint alleges one cause of action for negligent failure to supervise.

Defendant

demurs to Plaintiff's Complaint, and moves to strike portions of Plaintiff's pleading. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, "a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . ."

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendant

contends that on May 22, 2026, it requested to meet with Plaintiff to meet and confer, but that Plaintiff did not respond to the request. (Spaur Decl., ¶¶ 4-6.) Thus, the parties did not meet and confer as required by statute. (Code Civ. Proc. § 430.41, subd. (a); Code Civ. Proc. §435.5, subd. (a).)

Based on

the moving papers and opposition, there is a dispute between the parties as to how many causes of action are brought forth in the Complaint, and this defect could have been addressed had the parties met and conferred prior to the filing of the present motions.

Thus, the

Court will continue the hearing on Defendant's demurrer and motion to strike to allow the parties to meet and confer in good faith. Defendant is also ordered to submit a declaration to the Court identifying what items in its motion remain relevant.

Conclusion

The

hearing on Defendant Los Angeles Unified School District's demurrer and motion to strike is continued to September 3, 2026 at 9:00 am.

Defendant is

ordered to meet and confer with Plaintiffs by August 21, 2026. Defendant is ordered to file a meet-and-confer declaration in compliance with the respective code sections. (Code Civ. Proc. § 430.41, subd. (a); Code Civ. Proc. §435.5, subd. (a).) Defendant's meet-and-confer declaration is due on August 27, 2026.